

Court No. - 3

Case :- WRIT - C No. - 17205 of 2017

Petitioner :- Smt. Rajesh Kumari

Respondent :- Secretary, Electricity Board And Another

Counsel for Petitioner :- Devesh Kumar Shukla

Counsel for Respondent :- Chandan Agarwal

Hon'ble Krishna Murari,J.

Hon'ble Ravindra Nath Kakkar,J.

It appears that the final assessment bill was issued to the petitioner without making any provisional assessment, notice and opportunity to file objection to the same. If that is correct, the consequential recovery is rendered illegal. However, the facts are not very clear from the pleadings. In such circumstances, Shri Chandan Agarwal, who has accepted notice on behalf of respondent no.2, may seek instructions within a week, specially with respect to the fact whether any provisional assessment bill was issued to the petitioner and also any notice or opportunity to file objection and hearing was afforded before issuance of final assessment bill.

Put up as fresh on 3.5.2017.

Order Date :- 25.4.2017

Anand Sri./-

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Hon'ble Krishna Murari,J.

Hon'ble Ravindra Nath Kakkar,J.

Heard Sri Devesh Kumar Shukla, learned counsel for the petitioner and Sri Chandan Agarwal, for the respondents.

By means of this petition filed under Article 226 of the Constitution of India, petitioner has prayed for quashing of the electricity bill dated 5.10.2016 issued by the respondent no. 2.

When the matter was taken up as fresh on 25.4.2017, the Court passed the following order :

"It appears that the final assessment bill was issued to the petitioner without making any provisional assessment, notice and opportunity to file objection to the same. If that is correct, the consequential recovery is rendered illegal. However, the facts are not very clear from the pleadings. In such circumstances, Shri Chandan Agarwal, who has accepted notice on behalf of respondent no.2, may seek instructions within a week, specially with respect to the fact whether any provisional assessment bill was issued to the petitioner and also any notice or opportunity to file objection and hearing was afforded before issuance of final assessment bill.

Put up as fresh on 3.5.2017."

Today when the case called out, Sri Chandan Agarwal, learned counsel for the respondent has passed on copy of instruction which are taken on record

From a perusal of the instructions, it is clear that the provisional assessment has been made without fixing the date of hearing, and without issuing any notice.

In the absence of notice and opportunity of hearing before making provisional assessment in compliance of the provisions contained under clause 6.8(b) of the U.P. Electricity Supply Code, 2005, which is mandatory, the impugned electricity bill dated 5.10.2016 issued by the respondent no. 2 is not liable to be sustained and is hereby quashed.

Writ petition stands allowed. It shall be open to the respondent to make a fresh assessment after following the procedure prescribed.

However, there shall be no order as to costs.

Order Date :- 5.5.2017/RPD